

ORDER SHEET

**IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT**

Writ Petition No. 108/2011

Rana Muhammad Usman

Versus

Tahir Aziz Bhatti etc.

S. No. of order/ Proceedings	Date of order/ Proceedings	Order with signature of Judge and that of Parties, counsel, where necessary
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1. 13.5.2013 Petitioner in person.

Through the instant petition, the petitioner has challenged the vires of judgment dated 16.4.2011 passed by the learned Addl. Sessions Judge, Sheikupura whereby private complaint under section 500 P.P.C. filed by the petitioner was dismissed and the accused Tahir Aziz Bhatti was acquitted of the charge framed against him.

2. The brief facts of the case are that the petitioner/complainant filed a private complaint against Tahir Aziz Bhatti, respondent No.1 alleging therein that the petitioner is a respectable law abiding citizen and social worker and was defence witness of case F.I.R. No. 1164/08 registered at Police Station Ferozewala which was got registered by one Dilawar Hussain, a close relative of Tahir Aziz Bhatti, respondent No.1. The accused of the said criminal case was exonerated by the police and since then Tahir Aziz Bhatti, respondent No.1 had been harboring malice and grudge against the petitioner/complainant; that on 3.12.2008 and 19.12.2008 respondent No.1 moved applications to the Secretary Food, Government of the Punjab and to the Chief Minister, Punjab respectively by levelling allegation that the petitioner/complainant is involved in selling 'Atta' as black in market which was issued for providing cheaper loaf to the poor; that on enquiries conducted by DDO(R), Ferozwala and Sharaqpur Sharif, the petitioner was

not found involved in it and all the allegations were found baseless and the same caused serious damaged to the fame, reputation and good name of the petitioner in the society and in the eyes of friends and relatives; that said allegations were also published in Daily Khabrain on 20.12.2008 and it was circulated in the vicinity by said respondent Tahir Aziz Bhatti. The petitioner filed a petition under section 22-A & B, Cr.P.C before the learned Ex-Officio Justice of Peace, Sheikupura wherein direction was issued to the petitioner to avail appropriate legal remedy, hence this petition.

3. The petitioner has contended that there is sufficient evidence available on record to connect respondent No.1 with the commission of alleged offence. It is further contended that involvement of the petitioner is well established from the record and testimony of eye witnesses including the evidence of the petitioner which is based on truth, therefore, the impugned judgment regarding acquittal of respondent No. 1 is the result of misreading and non-reading of the evidence which is not sustainable in the eye of law.

4. I have carefully considered the arguments of the petitioner and minutely perused the available record.

5. Admittedly, the petitioner and his witnesses have failed to prove the case of defamation. Respondent No. 1 admitted the filing of applications dated 19.12.2008 and 30.2.2008 addressed to the Secretary Food and to the Chief Minister Punjab wherein it is alleged that the petitioner and his companions were obtaining 'Atta' in the name of so-called Hotels for the purpose to provide Cheap loaf to the poor but the said Atta was being sold as black in the market. On the said allegation enquiries proceedings were initiated but the petitioner failed to bring on record any decision in his favour

nor any officers were produced as witnesses in support his version who conducted the said enquiries. The petitioner relied upon enquiry report dated 13.12.2008 (Mark-D), whereas the applications filed by respondent No.1 were dated 19.12.2008 and 30.12.2008, said report (Mark-D) was made six days prior to filling of alleged applications so contention of the petitioner was not proved as no enquiry report was exhibited relating to above said applications. The PW-1 has not deposed a single word that respondent No.1 filed any complaint against the petitioner. Likewise, PW-2 in his whole deposition has not mentioned date and time of distribution of posters against the petitioner by respondent No.1 nor alleged posters were brought on record. On the other hand PW-3 stated that the petitioner-complainant is still Chairman of the Social Welfare Committee and he also admitted in his cross-examination that on his application, enquiry was held regarding the misappropriation of Aata against the petitioner and after said enquiries three F.I.Rs were registered against the real culprits. The prosecution witnesses were inimical towards respondent No.1 and a number of criminal cases have been registered against the prosecution witnesses and they are not truthful witnesses. So far as, the ingredients of section 499 Pakistan Penal Code, 1860, are concerned the petitioner-complainant has to make out a case of: (a) making any imputation concerning the complainant by the accused, (b) that such imputation was made by words spoken or written or by sign or visible representations, and (c) that such imputation was made with the intention of harming or with the knowledge or having reason to believe that it would harm the reputation of the complainant against whom such statement was made. To constitute the offence of defamation, the prosecutor will

have to prove that the imputation or accusation was made with an intention or knowledge or belief as mentioned in above

ingredient (c). The petitioner-complainant has failed to prove the alleged allegations against respondent No.1 in the light of above stated ingredients of section 499 Pakistan Penal Code.

6. I have also taken note of the settled principle of criminal jurisprudence that unless it can be shown that the judgment of the lower court is perverse or that it is completely illegal and no other conclusion can be drawn except the guilt of the accused or there has been misreading or non-reading of evidence resulting in miscarriage of justice. The acquittal order cannot be interfered with whereby an accused earns double presumption of innocence as held in **Muhammad Mansha Kausar** v. **Muhammad Ashqar and others** (2003 SCMR 477). In this case the prosecution has not been able to bring on record adequate incriminating evidence against respondent No.1 which connect him with the alleged crime.

7. In view of what has been discussed above, I find no merit in this petition, which is hereby **dismissed in limine.**

(Aalia Neelum)
Judge

Approved for reporting.

Judge